

Briefing constitutional law

- The materials covered in this course are meant to embrace, by and large, all the topics of learning to be covered in a two-semester constitutional law course.
- This course contains seven chapters.
 1. It begins with generalities and concepts of constitutional law that are very useful to understand constitutional law and distinguish it from other laws. Under this chapter, you will be introduced to some of the basic foundations of constitutions and constitutional law. Although all of you are already somewhat familiar with the idea of a constitution and constitutional law in your past academic as well as social lives, it is important to understand that your studies in this course will expose you to a deeper, detailed and more analytical study of constitutional law. The study that you will make here will enable you to think about and to solve problems related to constitutional law, both at the general policy level and at more detailed individual and analytical levels. This section will introduce you to conceptual issues that distinguish constitutional law from other legal studies. Specifically at this chapter we will see;
 - The conception of state as a political and legal concept(juridical); under this sub topic we will see State as a Political Concept(Political Culture and Constitution,Configuration of Political Power) and State as a Juristic Person(Sovereignty,Sovereignty in the Changing World ,Forms of Sovereignty in International Law,Sovereignty as a Dynamic Concept,The Concept of Nationality).
 - Definitional and Conceptual Matters (Defining and Understanding Constitution and Constitutional Law,Features of Constitution,Fundamental Values / Principles in a Constitution Law(Sovereignty of the People,Supremacy of the Constitution,Ratified Human Rights Treaties the Constitution & Other Related National Laws,Human and Democratic Rights,Separation of State and Religion ,Transparency and Accountability of Government,Good Governance in the Realm of State Owned Businesses),Types of Constitutions,Policy Objectives and Principles in Constitutions (National Policy Principles and Objectives of the Ethiopian Constitution)).
 - **SIGNIFICANCE OF THE CONSTITUTION;** Constitution has many significance that is why modern democracy requires every state or country to have its own constitution therefore the following are the sum of significance of constitution.
 1. **Constitution allocates the functions of each organs of the state i.e. every state has three organs which are executive, legislature and judicially.** The constitution provides the

powers and limitations of those powers of each organs of the state. Constitution prescribes which organs of the state are superior to the other. It is through such prescription of the powers and limitation of powers of the powers of each organs of the state where the doctrine of separation of powers is realized.

The doctrine of separation of powers is one of the doctrines of modern democracy.

2. **Constitution provides for the guiding principles of the government;** People or citizen of the country need to know the principles which their government follows in ruling them. It is the constitution which tells people the principles which the government follows in ruling the people. Therefore constitution is important as it provides for definitive words, exact words, and precise word as the principles of the government.
3. **Constitution is a political manifesto;** It shows the principles of the government and type of government in power, type of government in power is known through the way the government entered into power. A government in power may be a democratic government or dictatorial government. If the government entered into power according to the constitution of the country then it is regarded as democratic government. But if the government enters into power contrary to the constitution of a particular country then it is undemocratic or dictatorial government. Likewise the constitution
4. **Constitution is a political manifesto** will provides the powers of the organs of the state and if the constitution provides for excessive powers to the executive then that government may be undemocratic government but if the constitution balances powers among the three organs of the state then the government will be democratic government.
5. **Constitution is a doctrine or mechanism which people use to control the government;** This is because the constitution provides for the procedures in which the state organs operates and at the same time provides for the ways on how people may discipline the government. One of the common ways which the people may discipline the government is through the general election however there are other ways which the constitution of the country provide to discipline either the executive, legislature or the judiciary.
6. **Constitution is a doctrine or mechanism which people use to control the government;** was to discipline the head of the state is known as *Impeachment of the president* and is done through legislature on behalf of the citizens. Another example is where any government (executive) leaders such as minister, deputy minister is alleged for misconduct or maladministration then may be punished through *ministerial responsibility*.
7. **Constitution is the point of reference to the citizens or people;** It is possible that when the government or government agency functions may infringe rights of the people or citizens, without constitution people will not have a ground to claim for their infringed rights. But if there is constitution and the constitution provides for those rights then it be will easy and

possible for citizens whose rights have been violated to claim it or them making reference to a certain provision of the constitution.

8. Constitution is the point of reference to the citizens or people Example 1: The government has power or right to acquire any land from any person for public interest and this power is conferred to the government by the *constitution* and provides for right to own property and land being in one of the property therefore in case the government acquires property or land from any person under the *constitution*.

9. Constitution is the point of reference to the citizens or people; entitled to fair and adequate compensation from the government.

FUNCTIONS OF CONSTITUTION/purpose of constitutional law;function as means and purpose as end.

❖ Generally the constitution has three major functions and that is as follows;

a) Legitimizing the government; Legitimize means justifying or legalize something according to law, the constitution setup state organs and the government and these organs perform various functions in carrying out day today responsibilities of the government to the people. In doing so the organs of the of the state must be legally formed according to the constitution of the country. So the constitution has the function of legitimizing the organs of the state or government. However before the constitution legitimizing the functions of the organs of the state. the constitution itself must be legitimate constitution. Legitimacy of the constitution is derived from the people and this means a legitimate constitution is that one which has mass support from the people that is the constitution which is formulated by the people. In all democratic countries constitution represents interests of the people therefore it is expected that legitimate constitution should save for the benefits and interest of the people and should originate from the people. That is why the constitution of Ethiopia of 1955 reads as follows; "...*The constitution of Ethiopia drafted by emperor for the benefits, welfare and progress of our beloved people...*" In order to ensure that the constitution gets legitimate people are to be involved in the process of drafting the constitution. Participation of people in their drafting of constitution is fully achieved if the constitution is made through referendum. Legitimizing function of the constitution is in four levels and that is as follows; **A. Constitution and actions of the government officials (legislature, executive, judicial, and others);** The function of the government is exposed by the actions of various government officials as follows; Providing ideology of the

- government.
- b) Organizing the citizen and the government; providing power (government framework and individual rights)
- c) **IDEOLOGICAL FUNCTION OF THE CONSTITUTION**; Ideology is the set of ideas or principles or doctrine of a state. In constitutional law ideology is the set of aims and ideas of a state in a political sector. It includes comprehensive version as a way of looking at things and also it involves philosophical tendency of the state. The constitution of the country always state out the ideology which the state follows and which the state believe in.
- Making, change/ amendment of constitutions. Making of a Constitution, What a Constitution should contain (government framework or power, freedoms and liberties or rights, and there delicate balance to provide ideals for example see the preamble of our constitution).
 - Classification of a Constitution
 - ✚ By looking at the Nature of the Constitution itself: Traditional Approach (Written /unwritten, codified/uncodified, Rigid/flexible, Conditional/unconditional)
 - ✚ By looking at the Nature of the State itself: Federal/Unitary classification
 - ✚ By looking at the nature of the Government itself: presidential/Parliamentary and Republican/Monarchical, Presidential/Parliamentary, Republican/Monarchil
 - ✚ By looking at the Legislature (Unicameral/Bicameral/Tricameral/Tetracameral, The Upper House, Lower House.
 - ✚ By looking at the nature of the Executive (Monosepalous Executive, Bicephalous Executive, Acephalous Executive (Dispersed Leadership).
 - ✚ By looking at the Nature of the Judiciary: Prerogative/rule of law syste.
 - ✚ Reflections on the Ethiopian Constitution

10. The second chapter deals with the core concepts of modern constitutional theory: Constituionalism, the Rule of law and Democracy. The materials in this chapter encompass a large body of literature in law and political science with the purpose of presenting the currents of thoughts in these areas from across the concerned disciplines. The materials will enable the students to grasp the theoretical currents and use them to understand our constitutional system better. Specifically at this chapter we will

see;

- ✓ Constitutionalism and its definition (Constitutionalism in Africa, Constitutionalism at Sub-National Levels in Federations), The Rule of Law (Conceptual and Global Overview, Issues of the Rule of Law, Legitimacy and Governance in Africa), Democracy (Does Democracy Require Preconditions to Emerge and Thrive? Is there a Right to Democratic Governance?) Electoral Systems, Laws and Principles (Universal Instruments and Elections, Regional Instruments, Administration of Elections, The Ethiopian Election System (Meaning and features of election, Types and Features of Electoral systems, Majoritarian Representation systems, Proportional Representation system, Reflection on the Ethiopian Legal Regime)).
- ✓ Democracy and Constitutionalism (Democratic Theory, Constitutionalism, The Concept of "Constitutional theory, Constitutional Democracy, Sustainable Development, Good Governance and Constitutional Order (Introduction, Sustainable Development, Constitutional Orders for Sustainable Development, Good Governance as an Element of Sustainable Development)).

11. The 3rd chapter deals with Creating Paradigms of State.

- I. Under this chapter we will see HISTORICAL PERCEPTION OF DEVELOPMENT OF CONSTITUTION IN THE WORLD;
 - a) Gentile constitution and SOCIAL DETERMINANTS OF GENTILE CONSTITUTION like family, clan, tribe, Phratry) and their characteristics and collapse.
 - b) THE RISE OF THE BOURGEOISIE CONSTITUTION & DEMOCRATIC CONSTITUTION AND CONTRIBUTION OF THE BOURGEOISIE PHILOSOPHERS; With development of human society and advancement of science and technology there were some changes in political order. These changes necessary to support a new economic system. As the result of these there was decline of gentile constitution and feudal constitution and emergence of bourgeoisie democratic constitutions. The bourgeoisie democratic constitution comes as the result of various philosophies propounded by bourgeoisie philosophers. At this time There are two major theories in the world which explain the origin of state and constitution namely *theological theory and social contract theory*. The famous proponent for this theory are two of them that is *Thomas Aquinas and John Locke*. *Theological theory* of the emergence of state and constitution runs squarely with the history of the church. It gained more

prominence during the feudal epoch. For that *theological theory* of state and constitution was a duty on the duty of feudalism and church. Christianity during this period feudalism in Europe becomes the universal religion of Europe. The church becomes an integral part of the political system all over the Europe. This means church specifically Roman Catholics Church with its leader in Rome that is the *pope* was dominant political institution. All the clerics of all countries from bishop to priests owed obedience to the pope of Rome. For that spiritual and politically orders professed Christianity therefore there was absolute supremacy of the church over the state. All this point to the *theory of state and constitution* which couldn't be separated from religious dogma or faith.

- So from the middle age to advent of capitalism the prominent of the emergence of the state and constitution was the *theological theory*. According to this theory state and constitution are natural and trinity constitutions. For that state and constitution are divine creatures that is means they are God given or God's creatures. According to *ST. Thomas Aquinas* contends that state is the Godly constitution. It was created by God in order to secure social life of man. The state had one primary legitimate function and that was to regulate social life of man jointly.
- He continues to say therefore should regulate social life within the limit or authority of the law giver and the law giver is the *God*. The state which is widely authority can enact laws but those laws should be just laws not oppressive laws. Therefore any unjust law which may be created by the state is contrary to the natural and divine laws or in other word the law is invalid hence unenforceable law.
- Since the church was or is the guardian of the law of God, it had superior right over the state. This is because the church enjoyed unconditional sovereignty over the state. The existence of the state is prized as long as it continues to defend the church and as long as it executes its communalism to preserve orders among the people by enforcing widely laws. Finally, therefore there is intimate link between the state and the church, and intimate link between the law and the church. So church is above the state and state made laws including the constitution of the state.
- After tremendous social changes in Europe *theological theory* starts to lose its acceptability among the scholars and philosophers of that time. Notable changes of criticism against *theological theory* were noted in the 16th C. at this time European societies were transition from feudalism

going to capitalism. This was the time when *bourgeoisie philosophers* emerged. The emergence of those *bourgeoisie philosophers* come together with the emergence of new philosophies of *state and constitution*. One of the common philosophies of state and constitution was the *theory of social contract* of state and constitution.

- SOCIAL CONTACT THEORY ON STATE AND CONSTITUTION; The withering or collapse away of the *theological theory* was followed or superseded by the *social contract theory*. Social contract theory become wide spread during 17th and 18th C. the social contract theory is rooted in the development of commodity economy.

- During this period of commodity economy people entered into contractual relations as equal be it at the level of production or level of exchange. The owners of the commodity couldn't exchange their commodities unless they regarded one another as equal and private owners.

- Again during this period workers entered into contractual relation with the employers as free and equal people. This development of contractual relation extended pressure on the *bourgeoisie philosophers* so that to propound *contractual theory* of emergence of state and law (constitution). The *theory of social contract* on the emergence of state and law is argued to be a democratic theory compared to other theory. This is because the *social contract theory* finds the source of political power from the people and not from the divine law (God).

- *Social contract theory* regards the state as the legal creation of individual will (peoples of freedom) and not creation of divine power. According to *social contract theory* the source of government or state is by mandate or authority of the people and their consent. For that under this theory the rule are under obligation to save the people. These rulers then can be removed from the office if they failed to save the people. Social contract theory was propounded by *five bourgeoisie philosophers* each of them having different and slightly version on *social contract theory*. These bourgeoisie philosophers are as follows;

- Hugo Grotius; lived between 1583 to 1645; he was a Dutch man and one of the 1st of profounder of *social contract theory* on the emergence of state and constitution. He contended that the constitution of each state has

been presided by a *social contract*. This was the contract between people and the rulers. In this contract people chose form of government which they consider themselves to be suitable for them. In this *social contract* people transferred their rights to the government. The reason for the people to choose to transfer their rights to the government they are three reasons. To find protection against danger. People prefer autocratic rule (under control) to liberty. To get protection against invasion or war. Once people transfer their right to the government they forfeit their right to punish the government. Even where the ruler may be very bad people shouldn't have power to punish or to control that ruler. This means the ruler may abuse power, tyrant and yet the people will not have power to punish such ruler. *Huggo Grotius* further argued that the only guarantees which the people have against the ruler under social contract are two that is *firstly revote against the ruler who is tyrant (tyrannical) and secondly people may appeal to the natural law*. Although *Hugo Grotius* advocates for revote as a means of people may take against tyrant ruler he says that this means should be taken in a very exceptional circumstance. Under the *social contract theory* state originates from the contract by virtue of which each individual surrender his sovereignty to the ruler. The people have the liberty to chose the government which they prefer but once they have chosen it they lose all the power to restrain their ruler save in real cases or circumstances.

- **Thomas Hobbes;** THOMAS HOBBS lived between 1589 to 1679, he was an English philosophers lived through the civil wars of England. This gave him an experience which convinced him over well being of state authority. According to *Thomas Hobbes* state authority out to be vested in *absoluter ruler* and he continue to say that *before* creation of the state man was at war against all. Because of that life of man was lovely or solitary. Also life of man was poor, cruel and brutish and life of man was short. All these precluded a normal life of man and again all these threatened the very survival of man. To escape from these state affairs people entered into a *social contract*, in this *social contract* a state was created. This state was called upon to ensure peace and security of man. To *Thomas Hobbes social contract* means an act of which people rejected their natural freedom unconditionally (without condition) in favour of monarch and recognized unlimited or absolute power of the monarch

over them. Man rejects any contractual rights by which he could demand the fulfillment of a certain obligations by the rulers. To *Thomas Hobbes* there was only the condition attached to the absolute power of the ruler that is *ruler should govern and keep order*. *Thomas Hobbes* totally discourages civil disobedience of the people to the rulers. This means *Thomas Hobbes* is not concerned with protection of individuals against oppression of the sovereignty. Because of that *Thomas Hobbes* is named as *absolutist monarch* and his *social contract theory* is known as *absolute social contract theory* of state and constitution or law. However *Thomas Hobbes* rejected the ideas that state and law emanated from God but from the people themselves.

- John Locke; *John Locke* lived between 1631 to 1704, he was an English philosopher and his philosopher comes after constitution revolution of 1688. This was the time when constitution ideas began to appear and develop all over Europe. The theory of *social contract* by *John Locke* put much emphasis on the emancipation of individuals or people. According to *John Locke* the state of nature was not one of miss order as how *Thomas Hobbes* propounds. He says that state was one of the peace, good will, mutual assistance and preservation. In this state of affairs people have all rights which the nature gave them. However it had one defect that is lack of organization. *John Locke* continues to say as the result of lack of organization natural and unborn rights of the people like *right to life, freedom to liberty* was in secure that means not secure and at danger. To *John Locke* this was people's property. So lack of organization made property of the people to be insecure because there was no established law, no impartial judges to secure those properties. In order to remedy the defect man entered into *social contract*. In this contract man surrendered or yields up to the sovereign so that the sovereign could preserve order and enforce law of nature. This means man still retained the natural rights to liberty, life, and other freedoms. These rights remains with the man even where man entered into *social contract* because these rights are natural rights to man and therefore they are enalienable (they cannot be separated) from man. In this way *John Locke* describes state as government by majority and that the rulers hold power in trust. Leaders have duties to preserve the individual rights whose protection the individual has entrusted to them. *John Locke*

concluded by stating that as long as the government fulfils this trust it cannot be disciplined of its power. When government ceased to protect the individual rights or when begins to encroach on the rights of individual then the government can be overthrown by the government. *John Locke* argued that sovereign or state power cannot justifiably be used in an arbitrary fashion over the life and fortunes of the people. To ensure that the state doesn't abuse its power *John Locke* advocates on constitutional limited state and he insisted on three fold division of the government that is nowadays commonly known as *separation of powers*.

- Read the remained bourgeois philosophers that are Jean J. Russell and Charles De Montesquieu and others of the like if any.

II. Under this sub-chapter we will see Development of State in the Paradigm of Western Civilization like The Rise of State without Nationhood, (The Greek City-State, THE Roman City-State and Empire-State), Medieval State, The Renaissance State and the Effect of Industrial Revolution on Nation- State Formation (Development in England, Developments in America and France, Nationalism and Liberalism as Propelling Forces, The Second Half of the 19th Century, The First World War, The Backlashes, World War II and its consequences and finally Chapter three takes on constitutional development in Ethiopia (starting from the traditional up to the the last written constitution of 1995), where students will examine limited but very pertinent materials about the history of public law and public administration before the present system.

12. Chapter four deals with separation of powers and forms of government, and it presents important materials on, among other matters, the three branches of government in Ethiopia and other nations. We will see Forms of Government (The presidential system Features, Merits and Demerits and Parliamentary System Features, Merits and Demerits), Separation of Powers, Organs of State (The Legislature (Privileges of Parliamentarians, Dissolution of Parliament, Functions of Parliament, The Legislative Functions of Parliaments), The Executive, The Judiciary) and finally Maintaining the Delicate Balance Between Judicial Independence and Judicial Accountability

13. Chapter five contains the discussion on federalism, self-determination and legal pluralism. This chapter contains current and topical materials that will help view the controversial issues of Ethiopian federalism and self-determination ubatuib ub nire acadenuc abd scuebtufuc ways.

Under this chapter we will learn A. Federalism(Issues of Federal Politics and Governance, Promotion of Political and Economic Unity in Federations, Ethnic Politics in Federal Systems, Exploring the Ethiopian Federation, Challenges to the Working of the Ethiopian Federal Arrangement, Self Determination, Legal Pluralism and Legal Pluralism in Ethiopia

14. Chapter six deals with fundamental rights and freedoms. The discussions in this chapter are fashioned on the basis of chapter three of the Ethiopian Constitution. Discussions on minority and gender rights have also been included in this chapter. Under this chapter we will see The Structure of Rights and Freedoms under the Ethiopian Constitution(historical classification of rights like 1st 2nd and 3rd generation, classification of rights as human and democratic rights and their feature), Interpretation and Enforcement of the Rights and Freedoms under the Constitution, Rights of Persons in Penitentiary Institutions, Protection of Minority Rights, Gender Equality, State of Emergency(derogable vs non derogable rights, causes and power to declare state of emergency) and finally the protection of Human Rights in Ethiopia

15. Finally, chapter seven introduces the complex issues of constitutional interpretation in Ethiopia in a fashion that does not overburden LL.B. students' level of comprehension. Under this chapter we will see The Meaning of Constitutional Interpretation, Models of Constitutional Interpretation, and Constitutional Interpretation in Ethiopia.

➤ As Regards the structure of the course, I would like to state two principles of organization that I used.

1. First, I have tried to start with the usual "First matters" in constitutional law studies, such as definitions and fundamental concepts, and then I moved on to more discursive topics. This is because I believe that students must become familiar with constitutional theories and concepts before they deal with a given body of constitutional development or a lack thereof. The present position of Ethiopian constitutional history, after the discussions in chapters one and two, will enable the students to critically evaluate the status of public law in Ethiopia during the past governments.

2. The second organizational matter that I was confronted with was whether to separate the textbook into two parts: an Ethiopian part, and a general comparative, theoretical part. Again, in spite of the suggestion by some reviewers, I have chosen to present the materials in a unified fashion. This is primarily because the course to be taught is Ethiopian Constitutional Law. Therefore, there is no point in teaching theory and comparative materials separately without intermeshing the latter with the Ethiopian materials, issues and views. I have taught constitutional law in both approaches, and in the separation regime, what

normally happened was that the Ethiopian part was pushed to the backyard and there was seldom the adequate time to cover it reasonably well. Furthermore, the lack of time was often presented as a scapegoat to avoid discussing sensitive constitutional issues

Method of delivery	Lectures, seminars, student presentations, group discussions, individual and group tutorials, assignments and project supervisions.
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Assessment	▪ The final grade shall be determined based on the performance of students in the following activities: ○ Class Participation...5% ○ Chapter Reflections / Summaries...10% ○ Student Presentations...10% ○ Test/Quiz...10% ○ Assignments / Project/ Essays/Mid-term exam...15% - Exam(s)...50%
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